

September 21, 2026
Dept. 9
Probate Tentative Rulings

3.	26PRO226	IN RE: STEVEN L. ROWE REVOCABLE TRUST, DATED NOVEMBER 18, 2020
PETITION HEARING		

On July 30, 2026, Petitioner, Alice J. Bailey (“Petitioner” or “Trustee”), filed a Petition for Confirmation of Trust Assets.

On or around November 18, 2020, Steven L. Rowe (“Settlor”) created a declaration of trust for the Steven L. Rowe Revocable Trust (the “Trust”) and executed a pour-over will, leaving the balance of his estate to the Trust. On the same date, Settlor also executed and acknowledged two Trust Transfer Deeds conveying each parcel to himself as trustee of the Trust for the real property and residence located at 9010 Vista Del Rio Avenue, Fair Oaks, California 95628 (the “Fair Oaks property”) and for the real property and vacant land parcel in the unincorporated area of San Diego County (the “San Diego property”).

Settlor acquired the Fair Oaks property on or about October 4, 2005, by grant deed. The San Diego property was acquired on or about February 13, 2007, by quitclaim deed. The Trust Transfer Deeds executed on or about November 18, 2020, were never recorded and title remained in Settlor’s name at his death.

Petitioner contends that Settlor intended both properties be held in trust which is evidenced by the execution of the Trust Transfer Deeds. The Trust has no schedule of property attached to it; however, it expressly contemplates this method of funding:

Section 2.2 Additions to Trust. From time to time, the trustee may accept additions to this trust from any source. All such additions shall become a part of the trust estate and shall be held, administered, and distributed in accordance with the terms of this instrument. That additional property shall become part of the trust estate upon written acceptance of it by the trustee. Any additions to the trust shall be made by designating in writing the property to be added. However, **the titling of any account, deed, or similar asset in the name of the trustee, as trustee of the this trust, or any alternate or successor trustee acting under this instrument, shall be deemed a transfer to this trust.** Any designation by a third party, whether by will, deed, account title designation, or similar transfer, shall also be a transfer to the estate. (emphasis added)

The Last Will of Steven L. Rowe provides:

2.1 Gift of the Entire Estate. I give all of my property to the trustee of the Steven L. Rowe Revocable Trust, created under the declaration of trust executed on November 18, 2020, by Steven L. Rowe, as Settlor and Trustee. The trustee of that trust shall add the property disposed of under this will to the trust principal and

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hold, administer, and distribute the property in accordance with the provisions of that declaration of trust, including any amendments and restatements of that declaration of trust that have been made before or after execution of this will.

Petitioner requests the Court confirm the Fair Oaks property and San Diego property as trust assets to be held and administered pursuant to the terms of the trust.

Probate Code § 850 permits a trustee who has a claim to property, the title to or possession of which is held by another, to file a petition requesting that the court make an order pursuant to Probate Code § 856 authorizing and directing the person having title to or possession of real property to execute a conveyance or transfer to a person entitled thereto, or granting other appropriate relief.

Probate Code § 851 requires the Petitioner to serve notice of the hearing and a copy of the Petition at least 30 days prior to the hearing to each person claiming an interest in or having title to or possession of the property. When the matter concerns a decedent estate, notice shall also be given to any heir or devisee whose interest may be affected by the Petition in accordance with Probate Code § 1200.

Probate Code § 857 provides that in the event that the court issues such an Order:

- (a) The order is prima facie evidence of the correctness of the proceedings and of the authority of the personal representative or other fiduciary or other person to make the conveyance or transfer.
- (b) After entry of an order that the personal representative, other fiduciary, or other person execute a conveyance or transfer, the person entitled thereunder has the right to the possession of the property, and the right to hold the property, according to the terms of the order as if the property had been conveyed or transferred in accordance with the terms of the order.

Notice of the hearing and a copy of the Petition were mailed at least 30 days prior to the hearing, to each person claiming an interest in or having title to or possession of the property. Petitioner has confirmed she is the sole heir and beneficiary entitled to notice.

Pursuant to Probate Code §850 and *Estate of Heggstad* (1993) 16 Cal.App. 4th 943, 947-950, the Court finds sufficient evidence that Seettlor intended the property be part of the Trust.

TENTATIVE RULING #3:

ABSENT OBJECTION THE PETITION IS GRANTED AS REQUESTED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).

IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE.